

**2. LAND HOME FINANCIAL SERVICES, INC. v. BURKE, 25CV3470****(A) Motion to Compel Response to Form Interrogatories (Set One)****(B) Motion to Compel Response to Request for Production (Set One)****(C) Motion to Deem Matters Admitted****Motion to Compel Response to Form Interrogatories (Set One)**

On April 28, 2026, cross-complainant Gregory Burke (“cross-complainant”),<sup>1</sup> who is proceeding in pro per, filed the instant motion to compel cross-defendant Land Home Financial Services, Inc.’s (“cross-defendant”) verified response to Form Interrogatories (Set One) and requested the court to impose a monetary sanction for reasonable fees and costs incurred bringing the motion.

Cross-defendant filed no opposition.

The court grants the motion to compel and imposes a monetary sanction against cross-defendant in the amount of \$60.00, representing the filing fee for the motion. The court denies the request for attorney fees because, as a self-represented litigant, cross-complainant is not entitled to recover attorney fees as discovery sanctions. (*Argaman v. Ratan* (1999) 73 Cal.App.4th 1173, 1179 (“*Argaman*”).)

**Motion to Compel Response to Request for Production (Set One)**

On April 28, 2026, cross-complainant Gregory Burke (“cross-complainant”),<sup>2</sup> who is proceeding in pro per, filed the instant motion to compel cross-defendant Land Home Financial Services, Inc.’s (“cross-defendant”) verified response to Request for Production (Set One) and requested the court to impose a monetary sanction for reasonable fees and costs incurred bringing the motion.

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<sup>1</sup> The body of the motion indicates that it is brought by Gregory Burke; the motion is also signed by Gregory Burke. It appears that cross-complainant inadvertently listed co-cross-complainant Griffin Burke’s information in the caption of the pleading.

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Cross-defendant filed no opposition.

The court grants the motion to compel and imposes a monetary sanction against cross-defendant in the amount of \$60.00, representing the filing fee for the motion. The court denies the request for attorney fees because, as a self-represented litigant, cross-complainant is not entitled to recover attorney fees as discovery sanctions. (*Argaman, supra*, 73 Cal.App.4th at p. 1179.)

**Motion to Deem Matters Admitted**

A party served with requests for admission must serve a response within 30 days. (Code Civ. Proc., § 2033.250.) Failure to serve a response entitles the requesting party, on motion, to obtain an order that the genuineness of all documents and the truth of all matters specified in the requests for admission be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) When such a motion is made, the court must grant the motion and deem the requests admitted unless it finds that prior to the hearing, the party to whom the requests for admission were directed has served a proposed response that is in substantial compliance with the provisions governing responses. (Code Civ. Proc., § 2033.280, subd. (c); *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 776, 778; see also *Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 395–396 [“two strikes and you’re out”].)

In opposition to the instant motion, cross-defendant Land Home Financial Services, Inc. submitted a declaration showing that it served its response to the requests for admission on July 6, 2026.

Therefore, the court denies the motion to deem matters admitted.

**TENTATIVE RULING # 2:**

**MOTION TO COMPEL RESPONSE TO FORM INTERROGATORIES (SET ONE): THE MOTION TO COMPEL IS GRANTED IN PART. CROSS-DEFENDANT LAND HOME FINANCIAL SERVICES, INC. SHALL SERVE ITS VERIFIED RESPONSE WITHOUT**

OBJECTIONS TO CROSS-COMPLAINANT GREGORY BURKE'S FORM INTERROGATORIES (SET ONE), AND PAY CROSS-COMPLAINANT A MONETARY SANCTION OF \$60.00, WITHIN 30 DAYS FROM THE DATE OF SERVICE OF THE NOTICE OF ENTRY OF ORDER.

MOTION TO COMPEL RESPONSE TO REQUEST FOR PRODUCTION (SET ONE): THE MOTION TO COMPEL IS GRANTED IN PART. CROSS-DEFENDANT LAND HOME FINANCIAL SERVICES, INC. SHALL SERVE ITS VERIFIED RESPONSE WITHOUT OBJECTIONS TO CROSS-COMPLAINANT GREGORY BURKE'S REQUEST FOR PRODUCTION (SET ONE), AND PAY CROSS-COMPLAINANT A MONETARY SANCTION OF \$60.00, WITHIN 30 DAYS FROM THE DATE OF SERVICE OF THE NOTICE OF ENTRY OF ORDER.

MOTION TO DEEM MATTERS ADMITTED: THE MOTION IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.